

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 940

Introduced by Murman, 38; Andersen, 49; Conrad, 46; Juarez, 5; Kauth, 31;
Lippincott, 34; Lonowski, 33.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to schools; to prohibit certain color
- 2 additives in school meals as prescribed.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Color additive has the same meaning as in 21 U.S.C. 321, as such
3 section existed on January 1, 2026; and

4 (b) School meal means a school meal served pursuant to the federal
5 Richard B. Russell National School Lunch Act, 42 U.S.C. 1751 et seq., or
6 the federal Child Nutrition Act of 1966, 42 U.S.C. 1771 et seq., as such
7 acts and sections existed on January 1, 2026, and does not include any
8 other food offered or made available to students.

9 (2) On or after August 1, 2026, no public elementary or secondary
10 school shall offer or make available to any student any food served as a
11 part of a school meal that contains any of the following color additives
12 as referred to by the United States Food and Drug Administration in the
13 federal Regulatory Status of Color Additives as such list existed on
14 January 1, 2026:

15 (a) Blue No. 1;

16 (b) Blue No. 2;

17 (c) Green No. 3;

18 (d) Red No. 40;

19 (e) Yellow No. 5; or

20 (f) Yellow No. 6.